

25STCV02830 25STCV02830

County: los-angeles

Division: Civil Law and Motion

Department: 10

Hearing date: 2026-07-20

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SS%20%2C10%2C07%2F20%2F2026

Source SHA-256: 72e1b19a97fd141305a518b70107fd46a2244a5870f3b3702307b2fd59d43937

Case Number: 25STCV02830 Hearing Date: July 20, 2026 Dept: 10

Continue for

counsel to address the following items:

1) Ensure that ¶2.1 of the Settlement Agreement accurately lists the causes of action asserted in the original complaint.

2) According to the Settlement Agreement, “[i]n the event the Parties are unable to agree upon the form or content of any document necessary to implement the Settlement, or on any modification of the Agreement that may become necessary to implement the Settlement, the Parties may seek the assistance of the Court for resolution.”

(¶9.6) Why the Court and not the mediator?

3) According to the Escalator Clause set forth in the Settlement Agreement at ¶3.2, if “the number of workweeks during the Class Period exceeds 18,700 (17,000, plus 10% of 17,000)” Defendant will have the option to set the final day of the Class Period “before the number of the Workweeks exceeds 18,700, provided that such date does not precede the date of mediation.” The parties must resolve any uncertainty regarding the Class/PAGA Periods prior to preliminary approval being granted and notice being distributed.

Based on current records, the parties and the Administrator must review and verify the workweek total and confirm the end dates of the Class/PAGA Periods, revise the Class and PAGA Period definitions if needed, and remove the period-shortening option from the Escalator Clause. Ensure that the Notice and Proposed Order are modified to match any alterations to the Settlement Agreement.

4) Class Counsel seeks 35% in attorney fees. Counsel should note that the Court commonly awards attorney fees of no more than one third of the common fund absent substantial justification. The Court will decide the issue of attorney fees at the time of final approval.

5) According to ¶6.9.2 of the Settlement Agreement, written objections may be submitted by mail or email; however, according to ¶1.48, written objections may be submitted by mail. Address the inconsistency. Revise the Settlement Agreement, the Proposed Order at ¶17, and the Notice at ¶8, if necessary, to ensure that all documents provide consistent instructions regarding submission of written objections.

6) Provide the qualifications and experience of the Administrator, including evidence that the settlement administrator has procedures in place to protect the security of class data and adequate insurance in the event of a data breach or defalcation of funds.

7) The “Released Class Claims” set forth in the Settlement Agreement at ¶1.44 are overbroad. The Class release must be limited to claims alleged in the Operative Complaint or claims which reasonably could have been alleged in the Operative Complaint. Class members should not release “any and all claims based on or arising out of the same facts and allegations in any of the complaints filed in the Class Action” or “related claims that could have been asserted under the Fair Labor Standards Act.” (¶1.44) Revise accordingly.

8) The “Released PAGA Claims” set forth in the Settlement Agreement at ¶1.45 are overbroad. The PAGA release must be limited to claims alleged in the Operative Complaint or PAGA Notices or claims which reasonably could have been alleged in the Operative Complaint or PAGA Notices. PAGA Group Members should not release “all claims for civil penalties under PAGA asserted in any of the complaints filed in the PAGA Action, as well as the PAGA Notice sent by Plaintiff to the LWDA in connection with the PAGA Action during the PAGA Period, and all claims that could have been asserted in the PAGA Action based on the same alleged facts.” (¶1.45) Revise accordingly.

9) Provide a copy of Plaintiff’s PAGA Notice.

10) According to the Settlement Agreement at ¶4.1, Plaintiff and Defendant have entered into a confidential, individual agreement separate from the instant settlement. In light of Plaintiff's separate settlement agreement, the Court needs further briefing on the following questions:

o What

individual claims does this settlement encompass? How did the parties negotiate this settlement?

Provide a copy of the individual settlement for the Court to review.

o How is

Plaintiff an adequate and typical representative in light of this individual settlement agreement? How does the individual settlement not extinguish Plaintiff's ability to act as a Class or PAGA representative or pose an irrevocable conflict of interest with other Class Members?

o Why is a

class representative incentive award still reasonable?

11) According to the Settlement Agreement, the settlement "website will only remain available until 30 days after the Effective Date at which time it will be taken down by the Administrator." (¶6.11.1) Explain why 30 days is a sufficient period of time to maintain this website.

12) 12) if notice will be given in English only, explain why this is sufficient.

13) 13) The link provided in the Notice directing Class Members to the Superior Court website is invalid. (Notice, ¶10) Provide a valid link.

14) 14) If the Settlement Agreement is modified pursuant to this checklist, please submit both a red-lined copy showing changes made as well as a final version signed by all parties. Do not submit an addendum in

lieu of a full amended settlement agreement including all operative settlement terms. Assure the Settlement Agreement and Notice are consistent and that the Settlement Agreement has been signed by all parties and counsel. Carefully proofread both.